

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

2025CUBC048691: LK SECURED LENDING, LLC vs JASON TEAGUE, et al.

07/13/2026 in Department 43

Motion to Transfer Action Pursuant to CCP 403

The morning calendar in courtroom 43 will normally begin at 8:45. Please arrive for your hearing no later than 8:30 a.m. The door will be opened before the calendar is called.

The Court allows remote appearances by Zoom. Refer to the Courtroom 43 webpage for more information about remote appearances. For Zoom appearances, all counsel appearing by Zoom must register no later than 3:00 p.m. the court day before the hearing. If appearing by Zoom, log into the hearing no later than 8:30 a.m. The Court will transfer you to the meeting room when the calendar begins. Additional instructions can be found on the Court website. When you log in to Zoom, be sure that your name and the case name are used as your Zoom name.

With respect to the tentative ruling below, no notice of intent to appear is required. If you wish to submit on the tentative ruling you can fax notice to Judge Coats's secretary, Ms. Brantner at 805-477-8790, stating that you submit on the tentative. Or you may email Courtroom43@ventura.courts.ca.gov with all counsel copied on the email. Do not call in lieu of sending a fax or email. If you submit on the tentative without appearing and the opposing party appears, the hearing will be conducted in your absence. If you are the moving party and do not advise the Court that you submit on the tentative, or you do not appear at the hearing, the Court may deny your motion irrespective of the tentative.

Unless stated otherwise at the hearing, if a formal order is required but not signed at the hearing, the prevailing party shall prepare a proposed order and comply with CRC 3.1312 subdivisions (a), (b), (d) and (e). The signed order shall be served on all parties and a proof of service filed with the court. A "notice of ruling" in lieu of this procedure is not authorized.

Motion: LK Secured Lending's Motion to Transfer Action Pursuant to CCP 403

Tentative Ruling: LK Secured Lending's Motion to Transfer *250 3rd Avenue, LLC v. LK Secured Lending, LLC, et al.*, (LA Sup Ct case No. 25STCV20641) to Ventura Superior Court pursuant to Code of Civil Procedure section 403 is GRANTED.

The court grants LK's request for judicial notice of the pleadings from the LA case. (Evidence Code §452(d) & 453.)

The motion is not opposed by Cross-Defendant in the LA case, Brittany DeBeikes (Defendant in this pending case), who has stipulated with LK to set aside her default. (LK Reply at Ex A; Also, the Court has signed the order.). The factors at issue are set forth in Code of Civil Procedure section 404.1 and California Rule of Court, 3.500. The parties and the court agree that the two matters are not complex. Defendant Teague opposes the motion but offers that transfer and coordination is likely to affect settlement negotiations.

As to the common questions of fact and law, Defendant Teague concedes common facts but contends that the matters have substantially different questions of law. At issue in the Ventura case, according to Defendant Teague, is reimbursement of legal fees arising from defense of the LA action, whereas in the LA action the issue is whether the Lender breached a series of oral and written agreements regarding the loan. The court is not persuaded that there is little risk of inconsistent rulings if the motion is not granted. LK's complaint in the Ventura action alleges that the borrower (250 3rd Avenue, LLC) is in default under the loan. (Complaint at ¶11). In the LA case the borrower has alleged that LK breached a series of oral and written agreements regarding the loan. Additionally, LK has cross-complained in the LA action for breach of contract concerning the loan. (LK Cross-Complaints LK RJN 2, 3). The possibility of conflicting rulings is significant. The Court finds that the common questions of fact and law are predominating and significant to the litigation.

Regarding the factor of convenience, Defendant Teague argues that counsel will have to travel from San Francisco to Ventura rather than Los Angeles which will "more than double" counsel's travel time. The Court is not persuaded by this argument. A counsel's convenience is only one factor for the Court to consider in ruling on the motion. Moreover, having personally made the same trip dozens of times, the Court can take judicial notice of the fact that the increased travel time, portal to portal, is approximately 60 minutes, depending on traffic (Burbank Airport to Mosk Courthouse vs. Burbank Airport to Ventura Courthouse). This nominal increase is an insufficient basis to deny the motion, particularly given the availability of remote access for most appearances.

While the LA case is further developed (trial date set, exchange of discovery) the judicial efficiencies of (only) one venue having the two cases are clearly established.

Based on the foregoing, the motion is granted.

The moving party must promptly serve the order on all parties to each case and send it to the Judicial Council and to the presiding judge of the court from which each case is to be transferred.

The moving party must promptly take all appropriate action necessary to assure that the transfer takes place and that proceedings are initiated in the other court or courts to complete consolidation with the case pending in that court.

The Court will sign the proposed order. Any transfer fees are to be paid by the moving party, forthwith.